Fort Bend County District Court

Cause No. 2024-CV-0016

Sharon Flores, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	March 3, 2024
Plaintiff's counsel:	Anthony Galvan, Arias & Perry Injury Lawyers

PARTIES

Plaintiff Sharon Flores is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the policy of uninsured/underinsured motorist coverage unedr which Plaintiff now seeks benefits. Defendant may be served through its registered agent for service of process in Texas.

FACTS

On October 14, 2023, Plaintiff was lawfully stopped in traffic at an intersection in Conroe, Texas, when a vehicle operated by an uninsured motorist struck the rear of Plaintiff's vehicle at a high rate of speed. The impact forced Plaintiff's vehicle forward and jolted Plaintiff's body violently against the seat and restraint system. The at-fault driver left the scene before providing proof of insurance. Plaintiff timely reported the collision to Defendant and submitted all information requested under the policy, including the police report and medical authorization forms.

NEGLIGENCE

The at-fault driver failed to keep a proper lookout, failed to control speed, and failed to stop in time to avoid a collision with a vehicle that was lawfully stopped, in violation of Texas Transportation Code provisions governing following distance and due care. Defendant is obligated under the uninsured/underinsured motorist provisions of the policy to pay damages that Plaintiff is legally entitled to recover from the owner or operator of the uninsured vehicle. Defendant has failed to evaluate the calim in good faith and to pay benefits owed, in breach of the policy and the duties imposed by the Texas Insurance Code.

DAMAGES

As a direct result of the collision, Plaintiff suffered a lumbar back strain with muscle spasms, stiffness, and pain radiating into the hips. Plaintiff has incurred medical expenses for emergency evaluation, imaging, physical therapy, and prescribed medication, and will require further treatment. Plaintiff has lost wages and earning capacity and has suffered physical pain, mental anguish, and impairment of the enjoyment of life. Plaintiff seeks damages within the policy limits and statutory interest, in the total amount of $221,000.00, together with attorney's fees, costs of court, and such other relief to which Plaintiff may be entitled.